

the worker's compensation laws cannot be evaded by the ingenuity of counsel in presenting his claim for reimbursement under any variety of theories or nomenclature.

(*Id.* at p. 433.)

While Fernandes frames the 6th cause of action as a separate breach of contract claim, it does not appear to be. This cause of action includes allegations that the unauthorized changes resulted in the remnant of a sign to be left in the ground, which is alleged to be the cause of Hernandez' accident. (Cross-Complaint, ¶¶ 38-39; Complaint, ¶ 8.). In this cause of action, Fernandes seeks to recover damages – attorney's fees, costs, and potential settlement proceeds, and expenses from the underlying action. (Cross-Complaint, ¶ 41.) These are the types of damages sought on an indemnity claim. Based on these allegations, Labor Code § 3864 is seemingly applicable to this cause of action.

Accordingly, the Court sustains the demurrer as to the 6th cause of action with ten (10) days leave to amend from the date of service of the notice of ruling or service of the signed order, whichever is first.

Moving party is ordered to submit a proposed order consistent with this ruling by no later than July 2, 2026, 5:00 p.m.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2506427	RESNICK VS RIVERSIDE HEALTHCARE SYSTEM, L.P.	MOTION FOR RECONSIDERATION OF MOTION TO COMPEL ARBITRATION

Tentative Ruling:

The hearing on this motion is continued to July 16, 2026, at 8:30 a.m. No further briefing is permitted.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2507246	SAAD VS MELHEM	DEMURRER ON CROSS- COMPLAINT

Tentative Ruling:

The demurrer is unopposed.

1st Cause of Action: Defamation – Libel and Slander